

Code of Civil Procedure section 384(b).

4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
5. No appearance is required at the May 27, 2026 hearing.

9. 9:00 AM CASE NUMBER: C24-02285
CASE NAME: DARRIN OHLHAUSER VS. TAILGATERS SPORTS BAR & GRILL
***HEARING ON MOTION IN RE: ORDER SUBSTITUTING SUCCESSOR IN INTEREST**
FILED BY: OHLHAUSER, DARRIN
TENTATIVE RULING:

Plaintiffs Nita Ohlhauser, successor in interest to Darrin Ohlhauser, deceased, filed a Motion for Order Substituting Successor in Interest. The Motion seeks to name decedent's spouse, Nita Ohlhauser as the proper success in interest pursuant to Cal. Code of Civ. Proc. § 377.30. This Motion is unopposed and is therefore **granted**.

The Court will execute the proposed order lodged on December 2, 2025. No appearance is required at the hearing on May 27, 2026. The Court sets a further case management conference for November 24, 2026 at 8:30 a.m. The parties are ordered to file a further Case Management Conference Statement.

10. 9:00 AM CASE NUMBER: C24-02414
CASE NAME: DELLYON ROBINSON VS. FCI LENDER SERVICES, INC.
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: FCI LENDER SERVICES, INC.
TENTATIVE RULING:

Defendant FCI Lender Services, Inc.'s motion for judgment on the pleadings is **granted with leave to amend**.

Plaintiff alleges that Defendant was the loan servicer on his mortgage, but Defendant refused to provide a reinstatement quote when requested. (Comp. ¶15.) Plaintiff sued Defendant for (1) breach of the implied covenant of good faith and fair dealing, (2) violation of Civil Code section 2924c and (3) violation of Business and Professions Code section 17200. Defendant filed this motion for judgment on the pleadings as to each of the three causes of action on the ground that the facts alleged do not state sufficient facts to constitute a cause of action.

Collateral Estoppel

Defendant argues that Plaintiff is collaterally estopped from bringing these claims because he agreed to a stipulated judgment in an unlawful detainer action. In opposition Plaintiff argues both the merits of collateral estoppel and that judicial estoppel precludes Defendant's argument.

Judicial estoppel occurs " 'when " (1) the same party has taken two positions; (2) the positions